

PETITION - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

IN THE COURT

(Clerk of the sentencing court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

DISMISSAL AFTER PROBATION AND VACATION OF A PRE-1984 CONVICTION, RCW 9.95.240

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, RCW 9.95.240 is one of only four routes RCW 9.94A.030(11)(b) recognises for removing a conviction from criminal history, and it has two distinct limbs. Subsection (1): every defendant who has fulfilled the conditions of probation for the entire period, or who was discharged from probation before the period ended, may at any time before the maximum period of punishment for the offence expires be permitted in the court's discretion to withdraw a guilty plea and enter a plea of not guilty, or, where convicted after a plea of not guilty, have the verdict set aside, and the court may then dismiss the information or indictment, after which the person is released from all penalties and disabilities resulting from the offence. The probationer is to be informed of this right in their probation papers. A proviso preserves the conviction for pleading and proof in any subsequent prosecution for any other offence, with the same effect as if probation had not been granted. Subsection (2)(a): after the period of probation has expired, the defendant may apply to the sentencing court for vacation of the record of conviction under RCW 9.94A.640, and the court may in its discretion clear the record if it finds the defendant has met the equivalent of the RCW 9.94A.640(2) tests as those tests would be applied to a person convicted of a crime committed before 1 July 1984. That fixes the scope the controlling review could not: this is the pre-Sentencing Reform Act route. Subsection (2)(b) carries the same clerk transmittal to the Washington State Patrol identification section and any local police agency, the same immediate-update and FBI transmittal duties, and the same bar on dissemination except to criminal justice enforcement agencies.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record

itself.

[C1 - applicant name] What is your full legal name, and any other name the case was filed under?

.....
.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - conviction identity] What were you convicted of, and which exact RCW or municipal ordinance was it under?

.....
.....

[C4 - sentencing court] Which court sentenced you - district, municipal or superior - and in which county or city?

.....
.....

[C5 - cause number] What is the cause number?

.....
.....

[C6 - sentencing dates] What is the sentencing date, the date you were released from any confinement, and the date any supervision or probation ended?

.....
.....

[C7 - pending charges] Do you have any charge pending anywhere - Washington, another state, federal court or tribal court?

.....
.....

[C8 - new convictions] Have you been convicted of any new crime since, in this state, another state, or federal or tribal court?

.....
.....

[C9 - probation fulfilled] Did you complete the whole period of probation, or were you discharged from probation early?

.....
.....

[C10 - probation end date] On what date did the probation period end?

.....
.....

[C11 - offense before 1984] Was the offence committed before 1 July 1984?

.....
.....

[C12 - maximum punishment period] What was the maximum sentence the law allowed for this offence, and has that much time passed since sentencing?

.....
.....

[C13 - plea or verdict] Did the case end in a guilty plea, or in a verdict after a not guilty plea?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

PROPOSED ORDER - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED
PROBATION

IN THE COURT
(Clerk of the sentencing court)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under RCW 9.95.240(1); RCW 9.95.240(2)(a); RCW 9.95.240(2)(b); RCW 9.94A.640(2); RCW 9.94A.030(11)(b). The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

RECORDS CHECKLIST - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS PAGE IS

The committed record names three documents you must obtain before this motion is filed, and names the answer on the petition each one confirms. Work through them in order. Do not file until every one is in your hands and the petition agrees with it.

RECORDS YOU MUST OBTAIN BEFORE FILING

1. Washington State Patrol criminal history record. Required before filing. Where you get it: Washington State Patrol.

How to obtain it, as the record states it: The \$11 WATCH name and date-of-birth check online gives conviction information immediately and is enough to start routing. The non-conviction record is a different and slower product: it needs a fingerprint card plus \$12, or an in-person record review at no fee with fingerprints and limited inspection time. Read the WSP fee table live rather than relying on a stored figure.

Then do this: Check your answer to "What were you convicted of, and which exact RCW or municipal ordinance was it under?" against Washington State Patrol criminal history record, and correct the packet if they disagree.

2. Court docket from the sentencing court. Required before filing. Where you get it: Clerk of the district, municipal or superior court that sentenced the participant.

How to obtain it, as the record states it: Ask the clerk of the sentencing court for the docket. It supplies the cause number, the exact RCW, the offence class, the sentencing date and the supervision and release dates. Every Washington waiting period runs from one of those dates and none of them is reliably on the \$11 WATCH check.

Then do this: Check your answer to "What is the sentencing date, the date you were released from any confinement, and the date any supervision or probation ended?" against Court docket from the sentencing court, and correct the packet if they disagree.

3. Probation papers and the order of discharge from probation. Required before filing. Where you get it: Clerk of the sentencing court, or the supervising probation office.

How to obtain it, as the record states it: Ask the clerk or the probation office for the probation papers and any order discharging you from probation. RCW 9.95.240(1) says the probationer is to be informed of this right in their probation papers, so the papers themselves often say so.

Then do this: Check your answer to "Did you complete the whole period of probation, or were you discharged from probation early?" against Probation papers and the order of discharge from probation, and correct the packet if they disagree.

WHAT YOU MUST COMPLETE BY HAND

- Signature - Motion, signature block. The applicant signs their own motion.
- Judge's signature and date - Proposed order. Prepared unsigned and undated for the judge.
- Cause number and caption styling - Motion, caption. Left blank where the participant is unsure how the clerk of that court styles a pre-1984 caption; no pattern form fixes it.
- Signing: The applicant signs as a declaration under penalty of perjury.
- Notarisation: none - the pattern forms use a declaration under penalty of perjury.

WHERE THE COMPLETED SET GOES

Clerk of the sentencing court. File the motion and proposed order in the sentencing court. The filing instructions page in this packet states this route's destination, its recorded fee and fee-waiver position, its service rule and its stop conditions in full, and you should read that page before you go.

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

FILING INSTRUCTIONS - CLEAR AN OLDER WASHINGTON CONVICTION AFTER YOU FINISHED PROBATION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Dismissal After Probation and Vacation of a Pre-1984 Conviction, RCW 9.95.240.

Read at source on 2026-08-06, RCW 9.95.240 is one of only four routes RCW 9.94A.030(11)(b) recognises for removing a conviction from criminal history, and it has two distinct limbs. Subsection (1): every defendant who has fulfilled the conditions of probation for the entire period, or who was discharged from probation before the period ended, may at any time before the maximum period of punishment for the offence expires be permitted in the court's discretion to withdraw a guilty plea and enter a plea of not guilty, or, where convicted after a plea of not guilty, have the verdict set aside, and the court may then dismiss the information or indictment, after which the person is released from all penalties and disabilities resulting from the offence. The probationer is to be informed of this right in their probation papers. A proviso preserves the conviction for pleading and proof in any subsequent prosecution for any other offence, with the same effect as if probation had not been granted. Subsection (2)(a): after the period of probation has expired, the defendant may apply to the sentencing court for vacation of the record of conviction under RCW 9.94A.640, and the court may in its discretion clear the record if it finds the defendant has met the equivalent of the RCW 9.94A.640(2) tests as those tests would be applied to a person convicted of a crime committed before 1 July 1984. That fixes the scope the controlling review could not: this is the pre-Sentencing Reform Act route. Subsection (2)(b) carries the same clerk transmittal to the Washington State Patrol identification section and any local police agency, the same immediate-update and FBI transmittal duties, and the same bar on dissemination except to criminal justice enforcement agencies.

WHERE IT GOES

Clerk of the sentencing court

File the motion in the sentencing court. Relief is discretionary on both limbs. No Washington Courts pattern form for this section was identified by the controlling review or on this pass, so the pleading is drafted on the RCW 9.94A.640 model that Washington clerks expect.

Venue: The sentencing court, which on the subsection (2)(a) limb is the superior court that imposed the pre-1984 sentence.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established at source; the packet does not quote a court filing fee and directs the participant to ask the clerk. Fee waiver as recorded: Not established for the court filing fee.

WHO MUST BE SERVED

Service as recorded: Serve the prosecutor's office for the sentencing court and file proof of service. Notice

as recorded: Serve the prosecuting attorney for the sentencing court. Relief is discretionary on both limbs.

WHAT THE RECORD SAYS YOU MUST KNOW

- RCW 9.94A.030(11)(b) states that a conviction may be removed from a defendant's criminal history only if it is vacated under RCW 9.96.060, 9.94A.640, 9.95.240, or a similar out-of-state statute, or by a governor's pardon. Section 9.95.240 is one of only four routes the sentencing statute recognizes.
- In any subsequent prosecution for any other offence, a conviction dismissed under RCW 9.95.240(1) may still be pleaded and proved, and has the same effect as if probation had not been granted or the information or indictment dismissed.
- Vacation does not make the court record private, or remove the case from court indexes and public court websites. Never call Washington vacation expungement.
- Vacation does not restore firearm rights, which run through RCW 9.41.041.
- Vacated convictions still count for recidivist charging. RCW 9.96.060(8)(c) provides that a conviction vacated on or after 2019-07-28 qualifies as a prior conviction for the purpose of charging a present recidivist offense committed on or after that date.
- Local county superior court rules may require additional documents. Every packet carries a local-check instruction rather than assuming the pattern form set is complete.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any pending charge in Washington, another state, federal court, or tribal court.
- Any domestic violence element, charged or findable from the court file.
- Any protection, no-contact, antiharassment or civil restraining order currently in effect, or violated in the last five years.
- Any DUI, physical control, or alcohol or drug related driving offence, including a reduced charge.
- Any firearm, deadly weapon or sexual motivation enhancement.
- Any question about offence class or the exact RCW.
- Immigration consequences.
- Any participant whose real goal is firearm rights restoration, which is a separate proceeding under RCW 9.41.041.
- It is unclear whether the offence was committed before 1 July 1984.
- The maximum period of punishment may already have expired, which closes the subsection (1) limb.
- Whether the conditions of probation were fulfilled for the entire period is disputed.
- The participant expects the conviction to disappear for all purposes; the subsection (1) proviso preserves it for later prosecutions.

THE PAGES IN THIS SET

- wa_vac_post_probation_9_95_240-primary-filing-1: the composed petition, on this route's own statutory ground (Clear an older Washington conviction after you finished probation)
- wa_vac_post_probation_9_95_240-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Clear an older Washington conviction after you finished probation)
- wa_vac_post_probation_9_95_240-records-checklist-3: the records you must obtain before you file, and

what you must complete by hand (Clear an older Washington conviction after you finished probation)
- wa_vac_post_probation_9_95_240-filing-instructions-4: this page (Clear an older Washington conviction after you finished probation)

Route: obligation:track-only:WA:wa_vac_post_probation_9_95_240

REQUEST TO THE WASHINGTON STATE PATROL - ASK THE WASHINGTON STATE PATROL TO
DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

TO THE WASHINGTON STATE PATROL

(This request goes to the Washington State Patrol, which holds the criminal history record information. It is not a court filing: no court is involved, no order is sought, and no court assigns this request a case number. See the records checklist page in this packet for where to send it.)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
REQUESTER.

REQUEST TO DELETE NON-CONVICTION CRIMINAL HISTORY RECORD INFORMATION,
RCW 10.97.060

The requester, Maria-Alejandra O'Shaughnessy-Whitfield, asks the Washington State Patrol under RCW 10.97.060; RCW 10.97.030(2); RCW 10.97.040; RCW 10.97.110 to delete the non-conviction criminal history record information described below, and states:

A. THE RELIEF THIS REQUEST ASKS FOR, AS THE COMMITTED RECORD STATES IT

The only real deletion mechanism in Washington, and it does not touch convictions. Non-conviction criminal history record information is subject to deletion from generally searched criminal justice agency files where two years or more have passed since a favourable disposition, or three years from arrest, citation or warrant for an offence where no conviction was obtained. The request goes to the Washington State Patrol rather than to a court: it is an agency request, not a petition. Two bars apply outright, the person being a fugitive and the case remaining under active prosecution. Beyond those the agency retains discretion to refuse on three common grounds: the disposition was a deferred prosecution or similar diversion; the person has a prior felony or gross misdemeanour conviction; or the person has been arrested for or charged with another crime during the intervening period. WashingtonLawHelp states directly that it is hard for information to qualify as non-conviction data under the rules, which makes deletion hard to obtain, and that expectation must be set before anyone pays. Where deletion is refused there is a fallback: RCW 10.97.040 requires agencies to check with the WSP for the most current and complete information before reporting a conviction, and RCW 10.97.110 supports a suit, potentially with attorney fees, against an agency that violates the requirement.

B. THE REQUESTER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE REQUESTER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and any other name the case may have been under?

.....
.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - arrest details] On what date were you arrested or cited, by which agency, and for what?

.....
.....

[C4 - disposition detail] How did the case end, and on what date - dismissed, acquitted, or no charges ever filed?

.....
.....

[C5 - deferred prosecution] Was the case resolved through a deferred prosecution or a diversion programme?

.....
.....

[C6 - prior convictions] Do you have any prior felony or gross misdemeanour conviction?

.....
.....

[C7 - intervening arrests] Have you been arrested for or charged with any other crime since?

.....
.....

[C8 - fugitive or active] Is there any outstanding warrant for you, or is this case still being prosecuted?

.....
.....

D. THE REQUEST

The requester asks the Washington State Patrol to delete the record described in paragraph A, under RCW 10.97.060; RCW 10.97.030(2); RCW 10.97.040; RCW 10.97.110. No court is asked to decide anything and no court order is sought: the agency decides.

DATE SIGNATURE OF REQUESTER

(The requester signs and dates this request personally. Nothing on this page is signed or dated for the requester.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-06
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RECORDS CHECKLIST - ASK THE WASHINGTON STATE PATROL TO DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Request to Delete Non-Conviction Criminal History Record Information, RCW 10.97.060.

WHERE IT GOES

Washington State Patrol

Submit the deletion request to the WSP through its non-conviction deletion request process. No court is involved and no order is sought. The agency decides, and three of its refusal grounds are common.

Venue: Not a court route. The request goes to the Washington State Patrol, which holds the criminal history record information.

Filing as recorded: Submit the request to the Washington State Patrol through its non-conviction deletion request process. This is separate from any court vacate order and no court is involved.

WHAT THE RECORD SAYS YOU MUST KNOW

- Non-conviction deletion is discretionary on three common grounds. Set expectations before anyone pays.
- Fallback where deletion is refused: the accuracy provisions at RCW 10.97.040 and the remedy at RCW 10.97.110.
- The non-conviction record requires a fingerprint card, not the \$11 WATCH check.

RECORDS YOU MUST OBTAIN BEFORE YOU SEND THIS REQUEST

1. Washington State Patrol non-conviction criminal history record. Required before filing. Where you get it: Washington State Patrol.

How to obtain it, as the record states it: This route needs the non-conviction record, not the \$11 WATCH check. The non-conviction record requires a fingerprint card plus \$12, or an in-person record review at no fee with fingerprints and limited inspection time. Read the WSP fee table live rather than relying on a stored figure.

Then do this: Check your answer to "How did the case end, and on what date - dismissed, acquitted, or no charges ever filed?" against Washington State Patrol non-conviction criminal history record, and correct the packet if they disagree.

2. Court record of the disposition. Conditional: where charges were filed and a court disposed of them. Not applicable where no charges were ever filed. Where you get it: Clerk of the court that handled the case.

How to obtain it, as the record states it: Ask the clerk for the docket or the order of dismissal, which fixes the favourable-disposition date the two-year period runs from.

Then do this: Check your answer to "How did the case end, and on what date - dismissed, acquitted, or no

charges ever filed?" against Court record of the disposition, and correct the packet if they disagree.

WHAT YOU MUST COMPLETE BY HAND

- Signature - Request letter, signature block. The participant signs their own request.
- Fingerprint card - Attachment to the WSP non-conviction record request. Taken by a law-enforcement agency or an approved provider; LegalEase does not take or hold fingerprints.
- Signing: The participant signs the request.
- Notarisation: none required for the request itself. A notarised letter is an optional WSP record product at additional cost.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: RCW 10.97.060 states no fee for the request itself. The WSP charges for the record products: approximately \$11 for the WATCH conviction check, \$12 plus a fingerprint card for the non-conviction record, \$32 for a mailed conviction record, \$58 for a fingerprint-card record and \$15 for a notarised letter. Verify the fee table live at intake rather than storing it. Fee waiver as recorded: The in-person non-conviction record review carries no fee, though it requires fingerprints and allows only limited inspection time.

WHO MUST BE SERVED

Service as recorded: none. The request is submitted to the WSP. Notice as recorded: none. There is no notice or objection process; the agency decides.

THE PAGES IN THIS SET

- wa_del_nonconviction-primary-filing-1: the composed request to the Washington State Patrol, on this route's own statutory ground (Ask the Washington State Patrol to delete a record of a case that did not end in conviction)
- wa_del_nonconviction-records-checklist-2: this page
- wa_del_nonconviction-expectation-setting-3: what the record says about how hard this relief is to obtain, and when to stop (Ask the Washington State Patrol to delete a record of a case that did not end in conviction)
- wa_del_nonconviction-accuracy-remedy-guidance-4: what the record says you can do if the agency refuses (Ask the Washington State Patrol to delete a record of a case that did not end in conviction)

Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-06
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READ THIS BEFORE YOU PAY - ASK THE WASHINGTON STATE PATROL TO DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

READ THIS BEFORE YOU PAY FOR ANYTHING

Non-conviction deletion is discretionary on three common grounds. Set expectations before anyone pays.

WHAT THE COMMITTED RECORD SAYS ABOUT THIS ROUTE

The only real deletion mechanism in Washington, and it does not touch convictions. Non-conviction criminal history record information is subject to deletion from generally searched criminal justice agency files where two years or more have passed since a favourable disposition, or three years from arrest, citation or warrant for an offence where no conviction was obtained. The request goes to the Washington State Patrol rather than to a court: it is an agency request, not a petition. Two bars apply outright, the person being a fugitive and the case remaining under active prosecution. Beyond those the agency retains discretion to refuse on three common grounds: the disposition was a deferred prosecution or similar diversion; the person has a prior felony or gross misdemeanour conviction; or the person has been arrested for or charged with another crime during the intervening period. WashingtonLawHelp states directly that it is hard for information to qualify as non-conviction data under the rules, which makes deletion hard to obtain, and that expectation must be set before anyone pays. Where deletion is refused there is a fallback: RCW 10.97.040 requires agencies to check with the WSP for the most current and complete information before reporting a conviction, and RCW 10.97.110 supports a suit, potentially with attorney fees, against an agency that violates the requirement.

HOW LONG MUST HAVE PASSED

- Favourable disposition: Two years or more since the favourable disposition.
- No conviction obtained: Three years from the arrest, citation or warrant for an offence where no conviction was obtained.

WHAT THIS ROUTE DOES NOT REACH

- Convictions of any kind. This route reaches non-conviction data only.
- Any person who is a fugitive.
- Any case remaining under active prosecution.
- Records that do not qualify as non-conviction data under RCW 10.97.030(2), which WashingtonLawHelp warns is a harder test than it looks.
- Not an exclusion but a discretion: the agency may refuse where the disposition was a deferred prosecution or similar diversion, where the person has a prior felony or gross misdemeanour conviction, or where the person was arrested for or charged with another crime in the intervening period.

WHAT LEGALEASE CANNOT DO ON THIS ROUTE

What LegalEase cannot complete: the agency's decision, which is discretionary on three common grounds.

WHEN TO STOP AND GET HELP INSTEAD OF SENDING THIS REQUEST

- The record may not qualify as non-conviction data under RCW 10.97.030(2).
- The disposition was a deferred prosecution or similar diversion, which is a common refusal ground.
- The participant has a prior felony or gross misdemeanor conviction, which is a common refusal ground.
- The participant has been arrested for or charged with another crime in the intervening period, which is a common refusal ground.
- There is an outstanding warrant, or the case remains under active prosecution.
- The agency refuses and the participant wants to challenge it; that is the RCW 10.97.110 remedy and needs a lawyer.
- Immigration consequences.

IF THE AGENCY REFUSES

Fallback where deletion is refused: the accuracy provisions at RCW 10.97.040 and the remedy at RCW 10.97.110. The accuracy-remedy guidance page in this packet states that fallback in full.

Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-06
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IF THE AGENCY REFUSES - ASK THE WASHINGTON STATE PATROL TO DELETE A RECORD OF A CASE THAT DID NOT END IN CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS PAGE IS

Fallback where deletion is refused: the accuracy provisions at RCW 10.97.040 and the remedy at RCW 10.97.110.

WHAT THE COMMITTED RECORD SAYS THE FALLBACK IS

Where deletion is refused there is a fallback: RCW 10.97.040 requires agencies to check with the WSP for the most current and complete information before reporting a conviction, and RCW 10.97.110 supports a suit, potentially with attorney fees, against an agency that violates the requirement.

THE TWO PROVISIONS THIS RESTS ON

- RCW 10.97.040, the accuracy provision: an agency must check with the Washington State Patrol for the most current and complete information before it reports a conviction.
- RCW 10.97.110, the remedy: it supports a suit, potentially with attorney fees, against an agency that violates that requirement.

THERE IS NO APPEAL INSIDE THE DELETION ROUTE ITSELF

Notice as recorded: none. There is no notice or objection process; the agency decides. The RCW 10.97.110 remedy is a separate proceeding against an agency that reported inaccurate information, not an appeal of the deletion decision, and this packet neither brings it nor drafts it.

WHEN TO STOP AND GET HELP

- The agency refuses and the participant wants to challenge it; that is the RCW 10.97.110 remedy and needs a lawyer.
- Immigration consequences.

WHAT THE RECORD DOES NOT ESTABLISH

RCW 10.97.060 and RCW 10.97.030(2) were not read at source, by the controlling review or on this pass; the route is stated from the review and from WashingtonLawHelp. The precise definition of non-conviction data, which the review and WashingtonLawHelp both flag as the hard part, is therefore described rather than reproduced.

Route:

obligation:track-pathway:WA:wa_del_nonconviction:non-conviction-record-deletion-under-rcw-10-97-060